

HOUSE BILL 2359

By Hawk

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 17; Title 43; Title 57 and Title 67, Chapter
4, Part 10, relative to vapor products.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-4-1001(7), is amended by
deleting the subdivision and substituting instead:

(7) "Consumable material" means a liquid nicotine solution, whether natural or
synthetic, or a liquid nicotine analogue intended for use in a vapor product;

SECTION 2. Tennessee Code Annotated, Section 67-4-1001(28), is amended by
deleting the subdivision and substituting instead:

(28) "Vapor product":

(A) Means a noncombustible product containing consumable material
that employs a mechanical heating element, battery, electronic circuit, or other
mechanism, regardless of shape or size, that can be used to produce or emit a
visible or non-visible vapor;

(B) Includes an electronic cigarette, electronic cigar, electronic cigarillo,
electronic pipe, or similar product, and any vapor cartridge containing
consumable material or other container of consumable material that is intended
to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo,
electronic pipe, or similar product; and

(C) Does not include a product regulated under Chapter V of the Food,
Drug, and Cosmetic Act (21 U.S.C. § 351 et seq.);

SECTION 3. Tennessee Code Annotated, Section 67-4-1035(d), is amended by deleting the language "is subject to a fine" and substituting instead the language "is subject to a fine, issued by the alcoholic beverage commission,".

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.